

Atmakuri Sushman, vs The State Of Andhra Pradesh on 27 August, 2020

Author: M. Satyanarayana Murthy

Bench: M. Satyanarayana Murthy

THE HON'BLE SRI JUSTICE M. SATYANARAYANA MURTHY

WRIT PETITION NO.15079 of 2020

ORDER:

This writ petition under Article 226 of Constitution of India seeking the following relief:-

"to issue Writ Order or direction more particularly one in the nature of Writ of Mandamus, declaring the action of 3rd respondent police in calling the petitioner to the Police Station and the respondent police not followed the procedure contemplated in Arnesh Kumar Vs. State of Bihar and another¹ and also Lalitha Kumari vs. Government of Uttar Pradesh² and not issued 41-A Cr.P.C notice, wherein the police has to give notice in two (02) weeks to submit explanation, which is quite illegal, arbitrary, against the principles of natural justice and also violative of Articles 14, 19 and 21 of the Constitution of India and consequently direct the 3rd respondent police to issue 41-A Cr.P.C notice to the petitioner and his family members in any FIR pursuant to the complaint made by the 4th respondent and to pass such other order as this Court deems fit just and proper in the circumstances of the case."

2. It is the case of petitioner that the petitioner and the 4th respondent are husband and wife/4th respondent respectively, there were some disputes between them and they are living separately from each other. In that regard, the petitioner filed a petition for restitution of conjugal rights under Section 9 of Hindu Marriage Act in C.P.No.47/2020 on the file of Family Court, Berhampur, Orissa District and the 4th respondent is not willing to lead marital life with him. With a view of extract money, the 4th respondent and her family members are trying to implicate the petitioner and his parents in false and frivolous (2014) 8 SCC 273 (2014) 2 SCC 1 cases in connection with the matrimonial affairs with dire consequences, and the 3rd respondent without conducting any enquiry, without issuing any notice under Section 41-A Cr.P.C and without calling for explanation of the petitioner sent the police to his house and trying to arrest the petitioner and his family members, which is contrary to Arnesh Kumar's case (referred supra 1) and also the judgment of Lalitha Kumari's case (referred supra 2) and the 3rd respondent did not comply the same.

3. However, it is the contention of learned counsel for petitioner that while the investigation is pending, the 3rd respondent is bound to follow the procedure prescribed under Section 41-A of Cr.P.C and guidelines issued by Apex Court in Arnesh Kumar's case (referred supra 1), but the 3rd

respondent is trying to arrest the petitioner without following procedure. Therefore, the petitioner seeks direction against the 3rd respondent to follow procedure under Section 41-A of Cr.P.C and guidelines issued by Apex Court in Arnesh Kumar's case (referred supra 1).

4. During hearing, the learned counsel for petitioner reiterated the contentions, whereas learned Assistant Government Pleader for Home contended that after issuing notice under Section 41-A of Cr.P.C Section 41 (1)(b) Cr.P.C., is to be followed, therefore, necessary direction can be issued.

5. The petitioner's grievance is that the 3rd respondent is trying to arrest him and his family members without following the procedure prescribed under Section 41-A of Cr.P.C and the guidelines issued by the Apex Court in Arnesh Kumar's case (referred supra 1) and Lalitha Kumari's case (referred supra 2). No doubt, the police are empowered to arrest the accused, without warrant, when a person commits any cognizable offence, or against whom a reasonable complaint has been made or credible information has been received, or a reasonable suspicion exists, of his having been so concerned committed cognizable offence punishable which may be less than seven (7) years or which may extend to seven (7) years, with or without fine, if the following conditions are satisfied, namely:

i. The police officer has reason to believe that the basis of such complaint, information or suspicion, that such person has committed the said offence;

ii. The police officer satisfied that arrest is necessary, to prevent such person from committing any further offence; or iii. To prevent such causing or tampering such evidence in such manner or to prevent such person to making any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade from disclosing such facts of the case to police officer and the police officer shall record, while making such arrest, his reasons in writing. But procedure under Section 41-A of Cr.P.C is bound to be complied by police officials, before arrest of a person, who allegedly committed any offence punishable with imprisonment for less than seven (7) years.

6. In view of law declared by Apex Court referred supra, even after issuance of notice under Section 41-A of Cr.P.C, when police officials did not satisfy with the explanation, police may follow procedure under Section 41 (1)(b) of Cr.P.C. Therefore, the 3rd respondent is directed to follow procedure under Section 41-A of Cr.P.C, if any reply is submitted by the petitioner and not satisfied with that, the 3rd respondent is bound to follow procedure under Section 41 (1)(b) of Cr.P.C.

7. With the above direction, Writ Petition is disposed of.

As a sequel, miscellaneous applications, pending if any, shall stand closed.

JUSTICE M. SATYANARAYANA MURTHY Date: 27.08.2020 IS THE HON'BLE SRI JUSTICE M. SATYANARAYANA MURTHY WRIT PETITION NO.15079 of 2020 Date: 27.08.2020 IS